

25NWCV03188 25NWCV03188

County: los-angeles

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Department: L

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Case Number: 25NWCV03188 Hearing Date: July 9, 2026 Dept: L

Defendant Haydee Del Carmen

Valdivia's Demurrer to the Second Amended Complaint is OVERRULED.

Defendant is ordered to file
an answer within 10 days of this order.

Defendant to give notice.

Background

This is an action for breach of contract. On September 9, 2025, Plaintiff Mario Romero, in pro per, ("Plaintiff") filed this action against Defendant Haydee Del Carmen Valdivia ("Defendant"). On September 25, 2025, Plaintiff filed the First Amended Complaint (FAC).

On February 24, 2026, the Court sustained Defendant's Demurrer to the FAC with 30 days leave to amend. (2/24/26 Minute Order.)

On March 24, 2026, Plaintiff filed the Second Amended Complaint (SAC). The SAC alleges one cause of action for breach of contract.

Defendant now demurs to the SAC on grounds that it fails to state a claim.

On June 26, 2026, Plaintiff filed

an opposition. No reply has been filed as of July 8, 2026.

Legal Standard

“[A] demurrer tests the legal sufficiency of the allegations in a complaint.” (Lewis v. Safeway, Inc. (2015) 235 Cal.App.4th 385, 388.) A demurrer can be used only to challenge defects that appear on the face of the pleading under attack or from matters outside the pleading that are judicially noticeable. (See Donabedian v. Mercury Ins. Co. (“Donabedian”) (2004) 116 Cal.App.4th 968, 994 [in ruling on a demurrer, a court may not consider declarations, matters not subject to judicial notice, or documents not accepted for the truth of their contents].) For purposes of ruling on a demurrer, all facts pleaded in a complaint are assumed to be true, but the reviewing court does not assume the truth of conclusions of law. (Aubry v. Tri-City Hosp. Dist. (1992) 2 Cal.4th 962, 967.)

Where a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

Meet and Confer

Code of Civil Procedure section 430.41 requires that the parties meet and confer “in person, by telephone, or by video conference.” (Code Civ. Proc., § 430.41, subd. (a).) “The demurring party shall file and serve with the demurrer a declaration stating either of the following: (A) The means by which the demurring party met and conferred with the party who filed the pleading subject to demurrer, and that the parties did not reach an agreement resolving the objections raised in the demurrer. (B) That the party who filed the pleading subject to demurrer failed to respond to the meet and confer request of the demurring party or otherwise failed to meet and confer in good faith.” (Code Civ. Proc., § 430.41, subd. (b)(A).)

The Notice of Motion states that, “[p]ursuant to Cal Rules of Court 3.724 & Cal code of Civil Procedure 430.42[,] Defense Counsel reached out to

Plaintiff on 6 Apr. 2026 and our meet & confer met [sic] with no results.”

(Notice., 1:25-27.)

There is no declaration from Defense counsel describing the “means” by which counsel attempted to meet and confer. Although the Court finds the meet and confer requirement has not been met, the Court will proceed with the merits of the Demurrer in interests of judicial efficiency.

Discussion

As a preliminary matter, the Court notes that Defendant’s “BRIEF STATEMENT OF THE FACTS AND CASE” section inappropriately outlines facts not contained in the SAC. The Court may not consider such extrinsic facts in ruling on the Demurrer. (See Donabedian, *supra*, 116 Cal.App.4th at p. 994.)

First Cause of Action – Breach of Contract

To state a cause of action for breach of contract, Plaintiff must be able to establish “(1) the existence of the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to the plaintiff.” (Oasis West Realty, LLC v. Goldman (2011) 51 Cal.4th 811, 821.)

The plaintiff must attach the contract at issue to the complaint or plead the material terms to assert a breach of contract claim. (Construction Protective Servs., Inc. v. TIG Specialty Ins. Co. (2002) 29 Cal.4th 189, 198–99; San Diego Housing Comm’n v. Indust. Indem. Co. (1998) 68 Cal.App.4th 526, 536.)

Defendant argues that the SAC fails to allege any agreement between the parties. Defendant notes that the contract alleged to have been breached is attached as Exhibit A to the FAC. Exhibit A is a lease agreement between non-party Jennifer Yi and the parties. Defendant asserts that Exhibit A does not demonstrate that a contract was created between the parties.

In opposition, Plaintiff argues that the SAC adequately alleges a cause of action for breach of contract. The

SAC alleges Plaintiff and Defendant orally agreed to each pay half of the monthly rent due under the lease agreement and extension. Defendant breached the contract by failing to pay her portion of rent, forcing Plaintiff to cover her portion.

No reply has been filed.

The breach of contract cause of action alleges the following:

“BC-1.

Plaintiff alleges that on 05/20/2022 a[n] oral agreement was made between MARIO ROMERO AND HAYDEE DEL CARMEN VALDIVIA. The essential terms of the agreement are as follows: Plaintiff and Defendant entered into an oral agreement to rent the subject property located at 10422 Western Ave., Downey, CA 90241. Under the terms of the oral agreement between Plaintiff and Defendant, Defendant agreed to pay one-half of the monthly rent for, two years, in the amount of \$3,250.00. Under the terms of the oral agreement between the Plaintiff and Defendant, Defendant agreed to pay one-half of the monthly rent, for one year, in the amount of \$3,450.00 for the extended time on the lease.

BC-2.

On or about 06/01/2022 defendant breached the agreement by the following acts: Defendant agreed to rent the subject property located at 10422 Western Ave., Downey, CA 90241. Defendant failed and refused to pay her share of the rent as agreed except for one payment made on or around June 2024. As a result, Plaintiff was required to pay Defendant's portion of the rent to avoid eviction and other damages.

BC-3.

Plaintiff has performed all obligations to defendant except those obligations plaintiff was prevented or excused from performing.

BC-4.

Plaintiff suffered damages legally (proximately) caused by defendant's breach of the agreement as follows: Defendant currently owes Plaintiff \$56,250.00 in unpaid rent.”

(SAC, p. 3.)

The Court finds that Exhibit 1 attached to the SAC is a residential lease agreement ("Lease") between the parties and non-party Jennifer Yi for rent of property located at 10422 Western Ave, Downey, CA 90241. (SAC, Exh. 1.) According to the Lease, the parties agreed to pay a monthly rent of \$3,250.00 from May 31, 2022 to May 31, 2024. Exhibit 2 attached to the SAC is an "Extension of Lease" which extends the parties' Lease for one year (until May 31, 2025) with a monthly rent of \$3,450.00. (SAC, Exh. 2.)

Exhibit 3 attached to the SAC contains a text message (purportedly from Defendant) appearing to show Defendant's single payment made to Plaintiff in June 2024 referred to in section BC-2. Exhibit 3 also contains a text message indicating a \$1,200.00 payment made by Defendant to Plaintiff on July 26, 2026. Exhibit 3 further contains undated text messages from Defendant that state the following: "I sent you the money for rent" and "50/50 right. So for now on I'll do it this way. [...]." (See SAC, Exh. 3.)

Reading the allegations liberally, the Court finds that the SAC adequately states a cause of action for breach of oral contract. Specifically, the SAC alleges that the parties orally agreed they would split rent for their 2-year Lease (monthly rent of \$3,250.00) and for the 1-year Lease extension (monthly rent of \$3,450.00). The material terms of the oral contract are sufficiently alleged—that is all that is required. The SAC further alleges that Defendant failed to pay her share of rent, notwithstanding one payment made in June 2024. Plaintiff was damaged in the amount of \$56,250.00 in unpaid rent. The Court thus finds that all elements of breach of oral contract have been alleged. To the extent that there are any ambiguities, such issues can be addressed via discovery. (See *Khoury v. Maly's of California, Inc.* (1993) 14 Cal.App.4th 612, 616 ["A demurrer for uncertainty is strictly construed, even where a complaint is in some respects uncertain, because ambiguities can be clarified under modern discovery procedures."].)

To the extent that Defendant argues that no such oral contract existed, the merits of such arguments are not appropriate at the demurrer stage.

Accordingly, Defendant's Demurrer to the SAC is OVERRULED.